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violence, 18 U. S. C. § 844(o), but the (now-invalidated) categorical approach in a prosecution for providing *information about* explosives to facilitate a crime of violence, § 842(p)(2). It would have mandated the case-specific approach in a prosecution for using false identification documents in connection with a crime of violence, § 1028(b)(3)(B), but the categorical approach in a prosecution for using confidential phone records in connection with a crime of violence, § 1039(e)(1). It would have mandated the case-specific approach in a prosecution for giving someone a firearm to use in a crime of violence, § 924(h), but the categorical approach in a prosecution for giving a minor a handgun to use in a crime of violence, § 924(a)(6)(B)(ii). It would have mandated the case-specific approach in a prosecution for traveling to another State to acquire a firearm for use in a crime of violence, § 924(g), but the categorical approach in a prosecution for traveling to another State to *commit* a crime of violence, § 1952(a)(2). And it would have mandated the case-specific approach in a prosecution for carrying armor-piercing ammunition in connection with a crime of violence, § 924(c)(5), but the categorical approach in a prosecution for carrying a firearm while “in possession of armor piercing ammunition capable of being fired in that firearm” in connection with a crime of violence, § 929(a)(1).

There would be no rhyme or reason to any of this. Nor does the government offer any plausible account why Congress would have wanted courts to take such dramatically different approaches to classifying offenses as crimes of violence in these various provisions. To hold, as the government urges, that § 16(b) requires the categorical approach while § 924(c)(3)(B) requires the case-specific approach would make a hash of the federal criminal code.

C

Section 924(c)(3)(B)’s history provides still further evidence that it carries the same categorical-approach command as § 16(b). It’s no accident that the language of the two laws

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is almost exactly the same. The statutory term “crime of violence” traces its origins to the Comprehensive Crime Control Act of 1984. There, Congress enacted the definition of “crime of violence” in § 16. § 1001(a), 98 Stat. 2136. It also “employed the term ‘crime of violence’ in numerous places in the Act,” *Leocal*, 543 U. S., at 6, including in § 924(c). § 1005(a), 98 Stat. 2138. At that time, Congress didn’t provide a separate definition of “crime of violence” in § 924(c) but relied on § 16’s general definition. The two statutes, thus, were originally designed to be read together.

Admittedly, things changed a bit over time. Eventually, Congress expanded § 924(c)’s predicate offenses to include drug trafficking crimes as well as crimes of violence. §§ 104(a)(2)(B)–(C), 100 Stat. 457. When it did so, Congress added a subsection-specific definition of “drug trafficking crime” in § 924(c)(2)—and, perhaps thinking that both terms should be defined in the same place, it also added a subsection-specific definition of “crime of violence” in § 924(c)(3). § 104(a)(2)(F), *id.*, at 457. But even then, Congress didn’t write a new definition of that term. Instead, it copied and pasted the definition from § 16 without making any material changes to the language of the residual clause. The government suggests that, in doing so, Congress “intentionally separated” and “decoupled” the two definitions. Brief for United States 34, 37. But importing the residual clause from § 16 into § 924(c)(3) almost word for word would have been a bizarre way of suggesting that the two clauses should bear drastically different meanings. Usually when statutory language “is obviously transplanted from . . . other legislation,” we have reason to think “it brings the old soil with it.” *Sekhar v. United States*, 570 U. S. 729, 733 (2013).

What’s more, when Congress copied § 16(b)’s language into § 924(c) in 1986, it proceeded on the premise that the language *required* a categorical approach. By then courts had, as the government puts it, “beg[un] to settle” on the view

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that §16(b) demanded a categorical analysis. Brief for United States 36–37. Of particular significance, the Second Circuit, along with a number of district courts, had relied on the categorical approach to hold that selling drugs could *never* qualify as a crime of violence because “[w]hile the traffic in drugs is often accompanied by violence,” it can also be carried out through consensual sales and thus “does not *by its nature* involve substantial risk that physical violence will be used.” *United States v. Diaz*, 778 F. 2d 86, 88 (1985) (*per curiam*) (emphasis added). Congress moved quickly to abrogate those decisions. But, notably, it didn’t do so by directing a case-specific approach or changing the language courts had read to require the categorical approach. Instead, it accepted the categorical approach as given and simply declared that certain drug trafficking crimes automatically trigger §924 penalties, regardless of the risk of violence that attends them. §§ 104(a)(2)(B)–(C), 100 Stat. 457.

The government’s reply to this development misses the mark. The government argues that §16(b) had not acquired such a well-settled judicial construction by 1986 that the reenactment of its language in §924(c)(3)(B) should be presumed to have incorporated the same construction. We agree. See *Jerman v. Carlisle, McNellie, Rini, Kramer & Ulrich, L. P. A.*, 559 U. S. 573, 590 (2010) (interpretations of three courts of appeals “may not have ‘settled’ the meaning” of a statute for purposes of the reenactment canon). But Congress in 1986 did more than just reenact language that a handful of courts had interpreted to require the categorical approach. It amended §924(c) specifically to abrogate the *results* of those decisions, without making any attempt to overturn the categorical *reading* on which they were based. And *that* would have been an odd way of proceeding if Congress had thought the categorical reading erroneous.

There’s yet one further and distinct way in which §924(c)’s history undermines the government’s case-specific reading of the residual clause. As originally enacted in 1968, §924(c)

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prohibited the use of a firearm in connection with *any* federal felony. §102, 82 Stat. 1224. The 1984 amendments *narrowed* §924(c) by limiting its predicate offenses to “crimes of violence.” But the case-specific reading would go a long way toward nullifying that limitation and restoring the statute’s original breadth. After all, how many felonies don’t involve a substantial risk of physical force when they’re committed using a firearm—let alone when the defendant brandishes or discharges the firearm?

Recognizing this difficulty, the government assures us that a jury wouldn’t be allowed to find a felony to be a crime of violence *solely* because the defendant used a firearm, although it could consider the firearm as a “factor.” Tr. of Oral Arg. 8. But the government identifies no textual basis for this rule, and exactly how it would work in practice is anyone’s guess. The government says, for example, that “selling counterfeit handbags” while carrying a gun wouldn’t be a crime of violence under its approach. *Id.*, at 9. But why not? Because the counterfeit-handbag trade is so inherently peaceful that there’s no substantial risk of a violent confrontation with dissatisfied customers, territorial competitors, or dogged police officers? And how are jurors supposed to determine that? The defendant presumably knew the risks of his trade, and he chose to arm himself. See *United States v. Simms*, 914 F. 3d 229, 247–248 (CA4 2019) (en banc) (refusing to “condem[n] jurors to such an ill-defined inquiry”). Even granting the government its handbag example, we suspect its approach would result in the vast majority of federal felonies becoming potential predicates for §924(c) charges, contrary to the limitation Congress deliberately imposed when it restricted the statute’s application to crimes of violence.

D

With all this statutory evidence now arrayed against it, the government answers that it should prevail anyway because of the canon of constitutional avoidance. Maybe the

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case-specific approach doesn't represent the best reading of the statute—but, the government insists, it is our duty to adopt any “fairly possible” reading of a statute to save it from being held unconstitutional. Brief for United States 45.⁶

We doubt, however, the canon could play a proper role in this case even if the government's reading were “possible.” True, when presented with two “fair alternatives,” this Court has sometimes adopted the *narrower* construction of a criminal statute to avoid having to hold it unconstitutional if it were construed more broadly. *United States v. Rumely*, 345 U. S. 41, 45, 47 (1953); see, e. g., *Skilling v. United States*, 561 U. S. 358, 405–406, and n. 40 (2010); *United States v. Lanier*, 520 U. S. 259, 265–267, and n. 6 (1997). But no one before us has identified a case in which this Court has invoked the canon to *expand* the reach of a criminal statute in order to save it. Yet that is exactly what the government seeks here. Its case-specific reading would cause § 924(c) (3)(B)'s penalties to apply to conduct they have not previously been understood to reach: categorically nonviolent felonies committed in violent ways. See *Simms*, 914 F. 3d, at 256–257 (Wynn, J., concurring).⁷

⁶There are at least two different canons of construction that sometimes go by the name “constitutional avoidance.” The one the government invokes here is perhaps better termed the presumption of constitutionality. Of long lineage, it holds that courts should, if possible, interpret ambiguous statutes to avoid rendering them unconstitutional, see, e. g., *Parsons v. Bedford*, 3 Pet. 433, 448–449 (1830) (Story, J.), and it is distinct from the more modern (and more debated) constitutional doubt canon, which suggests courts should construe ambiguous statutes to avoid the need even to address serious questions about their constitutionality, see *Rust v. Sullivan*, 500 U. S. 173, 190–191 (1991).

⁷The government claims to have found cases invoking the canon to expand a statute's reach, but none actually stands for that proposition. Each simply remarks in passing that a construction the Court arrived at for other reasons had the additional benefit of avoiding vagueness concerns; none suggests that a narrower construction was available. See *United States v. Grace*, 461 U. S. 171, 176 (1983) (accepting government's

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Employing the avoidance canon to expand a criminal statute's scope would risk offending the very same due process and separation-of-powers principles on which the vagueness doctrine itself rests. See *supra*, at 451–453. Everyone agrees that Mr. Davis and Mr. Glover did many things that Congress had declared to be crimes; and no matter how we rule today, they will face substantial prison sentences for those offenses. But does § 924(c)(3)(B) require them to suffer additional punishment, on top of everything else? Even if you think it's *possible* to read the statute to impose such additional punishment, it's *impossible* to say that Congress surely intended that result, or that the law gave Mr. Davis and Mr. Glover fair warning that § 924(c)'s mandatory penalties would apply to their conduct. Respect for due process and the separation of powers suggests a court may not, in order to save Congress the trouble of having to write a new law, construe a criminal statute to penalize conduct it does not clearly proscribe.

Employing the canon as the government wishes would also sit uneasily with the rule of lenity's teaching that ambiguities about the breadth of a criminal statute should be resolved in the defendant's favor. That rule is "perhaps not much less old than" the task of statutory "construction itself." *United States v. Wiltberger*, 5 Wheat. 76, 95 (1820) (Marshall, C. J.). And much like the vagueness doctrine, it is founded on "the tenderness of the law for the rights of individuals" to fair notice of the law "and on the plain principle that the power of punishment is vested in the legislative, not in the judicial

construction, which was "not contested by appellees"); *United States v. Culbert*, 435 U. S. 371, 379 (1978) (finding statute clear and refusing to "manufacture ambiguity where none exists"); *United States v. Shreveport Grain & Elevator Co.*, 287 U. S. 77, 82–83 (1932) (finding statute unambiguous and construing it according to "the natural import of its terms"). And the dissent, despite compiling a page-long list of constitutional avoidance cases spanning "more than 200 years," *post*, at 494–495, has been unable to find any better examples. See *post*, at 497 (opinion of KAVANAUGH, J.).

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department.” *Ibid.*; see *Lanier*, 520 U. S., at 265–266, and n. 5. Applying constitutional avoidance to narrow a criminal statute, as this Court has historically done, accords with the rule of lenity. By contrast, using the avoidance canon instead to adopt a more expansive reading of a criminal statute would place these traditionally sympathetic doctrines at war with one another.⁸

IV

What does the dissent have to say about all this? It starts by emphasizing that § 924(c)(3)(B) has been used in “tens of thousands of federal prosecutions” since its enactment 33 years ago. *Post*, at 472 (opinion of KAVANAUGH, J.). And the dissent finds it “surprising” and “extraordinary” that, after all those prosecutions over all that time, the statute could “suddenly” be deemed unconstitutional. *Ibid.* But the government *concedes* that § 924(c)(3)(B) is unconstitutional if it means what everyone has understood it to mean in nearly all of those prosecutions over all those years. So the only way the statute can be saved is if we were “suddenly” to give it a new meaning different from the one it has borne for the last three decades. And if we could do *that*, it would indeed be “surprising” and “extraordinary.”

The dissent defends giving this old law a new meaning by appealing to intuition. It suggests that a categorical reading of § 924(c)(3)(B) is “unnatural” because “[i]f you were to ask John Q. Public whether a particular crime posed a substantial risk of violence, surely he would respond, ‘Well, tell me how it went down—*what happened?*’” *Post*, at 482 (some internal quotation marks omitted). Maybe so. But the lan-

⁸ Admittedly, abandoning the categorical approach in favor of the case-specific approach would also have the effect of excluding from the statute’s coverage defendants who commit categorically *violent* felonies in *nonviolent* ways, and in that respect would be more “lenient” for some defendants. Regardless, the constitutional principles underlying the rule of lenity counsel caution before invoking constitutional avoidance to construe the statute to punish conduct that it does not unambiguously proscribe.

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guage in the statute before us isn't the language posited in the dissent's push poll. Section 924(c)(3)(B) doesn't ask about the risk that "a particular crime posed" but about the risk that an "offense . . . by its nature, involves." And a categorical reading of this categorical language seemed anything but "unnatural" to the unanimous Court in *Leocal* or the plurality in *Dimaya*.⁹ Nor did the government think the categorical reading of § 924(c)(3)(B) "unnatural" when it embraced that reading for decades. The dissent asks us to overlook the government's prior view, explaining that the government only defended a categorical reading of the statute "when it did not matter for constitutional vagueness purposes"—that is, before *Johnson* and *Dimaya* identified constitutional problems with the categorical approach. *Post*, at 502. But isn't that exactly the point? Isn't it at least a little revealing that, when the government had no motive to concoct an alternative reading, even it thought the best reading of § 924(c)(3)(B) demanded a categorical analysis?

If this line of attack won't work, the dissent tries another by telling us that we have "not fully account[ed] for the long tradition of substantial-risk criminal statutes." *Post*, at 502. The dissent proceeds to offer a lengthy bill of particulars, citing dozens of state and federal laws that do not use the categorical approach. *Post*, at 476–479, and nn. 4–17. But what does this prove? Most of the statutes the dissent cites impose penalties on whoever "creates," or "engages in conduct that creates," or acts under "circumstances that create" a substantial risk of harm; others employ similar language. Not a single one imposes penalties for committing certain acts during "an offense . . . that by its nature, involves" a

⁹To be sure, the dissent suggests that *Leocal* and *Dimaya* adopted a categorical reading simply to avoid practical and constitutional problems. *Post*, at 484, 491–492, and n. 23. But, as we have seen, this too is mistaken. *Leocal* did not even mention those problems, and *Dimaya* held that the text demanded a categorical approach. See *supra*, at 455–456.

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substantial risk, or anything similar. Marching through the dissent’s own catalog thus only winds up confirming that legislatures know how to write risk-based statutes that require a case-specific analysis—and that § 924(c)(3)(B) is not a statute like that.

When the dissent finally turns to address the words Congress actually wrote in § 924(c)(3)(B), its main argument seems to be that a categorical reading violates the canon against superfluity. On this account, reading “offense” generically in connection with the residual clause makes the residual clause “duplicate” the elements clause and leaves it with “virtually nothing” to do. *Post*, at 489. But that is a surprising assertion coming from the dissent, which devotes several pages to describing the “many” offenders who have been convicted under the residual clause using the categorical approach but who “might not” be prosecutable under the elements clause. *Post*, at 498–501. It is also wrong. As this Court has long understood, the residual clause, read categorically, “sweeps more broadly” than the elements clause—potentially reaching offenses, like burglary, that do not have violence as an *element* but that arguably create a substantial *risk* of violence. *Leocal*, 543 U. S., at 10. So even under the categorical reading, the residual clause is far from superfluous.

Without its misplaced reliance on the superfluity canon, there is little left of the dissent’s textual analysis. The dissent asserts that the phrase “by its nature” must “focu[s] on the defendant’s actual conduct”—but only because this “follows” from the dissent’s earlier (and mistaken) superfluity argument. *Post*, at 490. Next, the dissent claims that “the word ‘involves’” and “the phrase ‘in the course of committing the offense’” both support a case-specific approach. *Post*, at 490–491. But these words do not favor either reading: It is just as natural to ask whether the offense of robbery *ordinarily* “involves” a substantial risk that violence will be used “in the course of committing the offense” as it is to ask whether a *particular* robbery “involved” a substantial risk

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that violence would be used “in the course of committing the offense.” If anything, the statute’s use of the present and not the past tense lends further support to the categorical reading.¹⁰ The dissent thinks it significant, too, that the statute before us “does not use the term ‘conviction,’” *post*, at 491; but that word is hardly a prerequisite for the categorical approach, as *Dimaya* makes clear. Remarkably, the dissent has nothing at all to say about § 924(c)(3)’s history or its relationship with other criminal statutes; it just ignores those arguments. And when it comes to the constitutional avoidance canon, the dissent does not even try to explain how using that canon to criminalize conduct that *isn’t* criminal under the fairest reading of a statute might be reconciled with traditional principles of fair notice and separation of powers. Instead, the dissent seems willing to consign “‘thousands’” of defendants to prison for “years—potentially decades,” not because it is certain or even likely that Congress ordained those penalties, but because it is merely “possible” Congress might have done so. *Post*, at 498, 501. In our republic, a speculative possibility that a man’s conduct violated the law should never be enough to justify taking his liberty.

In the end, the dissent is forced to argue that holding § 924(c)(3)(B) unconstitutional would invite “bad” social policy consequences. *Post*, at 502. In fact, the dissent’s legal

¹⁰ The dissent claims that *Taylor v. United States*, 495 U.S. 575 (1990), and *Nijhawan v. Holder*, 557 U.S. 29 (2009), pointed to “the *absence* of the word ‘involved’” as one reason to adopt a categorical approach. *Post*, at 490. Not true. *Taylor* explained that the ACCA’s elements clause requires a categorical approach in part because it refers to a crime “that ‘has as an element’—not any crime that, in a particular case, involves—the use or threat of force.” 495 U.S., at 600. All the work in that sentence was being done by the phrase “in a particular case,” not by the word “involves.” And *Nijhawan* noted that the Court had construed the ACCA’s residual clause, which refers to crimes “that ‘*involv[e]* conduct that presents a serious potential risk of physical injury,’” to require the categorical approach. 557 U.S., at 36.

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analysis only comes sandwiched between a lengthy paean to laws that impose severe punishments for gun crimes and a rogue’s gallery of offenses that may now be punished somewhat less severely. See *post*, at 470–472, 498–501. The dissent acknowledges that “the consequences cannot change our understanding of the law.” *Post*, at 502. But what’s the point of all this talk of “bad” consequences if not to suggest that judges should be tempted into reading the law to satisfy their policy goals? Even taken on their own terms, too, the dissent’s policy concerns are considerably overblown. While the dissent worries that our ruling may elicit challenges to past § 924(c) convictions, *post*, at 500–501, the dissent’s preferred approach—saving § 924(c)(3)(B) by changing its meaning—would also call into question countless convictions premised on the categorical reading. And defendants whose § 924(c) convictions are overturned by virtue of today’s ruling will not even necessarily receive lighter sentences: As this Court has noted, when a defendant’s § 924(c) conviction is invalidated, courts of appeals “routinely” vacate the defendant’s entire sentence on all counts “so that the district court may increase the sentences for any remaining counts” if such an increase is warranted. *Dean v. United States*, 581 U. S. 62, 68 (2017).

Of course, too, Congress always remains free to adopt a case-specific approach to defining crimes of violence for purposes of § 924(c)(3)(B) going forward. As Mr. Davis and Mr. Glover point out, one easy way of achieving that goal would be to amend the statute so it covers any felony that, “based on the facts underlying the offense, involved a substantial risk” that physical force against the person or property of another would be used in the course of committing the offense. Brief for Respondents 46 (quoting H. R. 7113, 115th Cong., 2d Sess. (2018); emphasis deleted); see also Tr. of Oral Arg. 19 (government’s counsel agreeing that this language would offer “clearer” support for the case-specific approach than the current version of the statute does). The

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dissent's catalog of case-specific, risk-based criminal statutes supplies plenty of other models Congress could follow. Alternatively still, Congress might choose to retain the categorical approach but avoid vagueness in other ways, such as by defining crimes of violence to include certain enumerated offenses or offenses that carry certain minimum penalties. All these options and more are on the table. But these are options that belong to Congress to consider; no matter how tempting, this Court is not in the business of writing new statutes to right every social wrong it may perceive.

*

We agree with the court of appeals' conclusion that § 924(c)(3)(B) is unconstitutionally vague. At the same time, exactly what that holding means for Mr. Davis and Mr. Glover remains to be determined. After the Fifth Circuit vacated their convictions and sentences on one of the two § 924(c) counts at issue, both men sought rehearing and argued that the court should have vacated their sentences on all counts. In response, the government conceded that, if § 924(c)(3)(B) is held to be vague, then the defendants are entitled to a full resentencing, not just the more limited remedy the court had granted them. The Fifth Circuit has deferred ruling on the rehearing petitions pending our decision, so we remand the case to allow the court to address those petitions. The judgment below is affirmed in part and vacated in part, and the case is remanded for further proceedings consistent with this opinion.

It is so ordered.

JUSTICE KAVANAUGH, with whom JUSTICE THOMAS and JUSTICE ALITO join, and with whom THE CHIEF JUSTICE joins as to all but Part II–C, dissenting.

Crime and firearms form a dangerous mix. From the 1960s through the 1980s, violent gun crime was rampant in America. The wave of violence destroyed lives and devastated communities, particularly in America's cities. Be-

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tween 1963 and 1968, annual murders with firearms rose by a staggering 87 percent, and annual aggravated assaults with firearms increased by more than 230 percent.

Faced with an onslaught of violent gun crime and its debilitating effects, the American people demanded action. In 1968, Congress passed and President Lyndon Johnson signed the Gun Control Act. That law made it a separate federal crime to use or carry a firearm during a federal felony. Despite that and other efforts, violent crime with firearms continued at extraordinarily dangerous levels. In 1984 and again in 1986, in legislation signed by President Reagan, Congress reenacted that provision of the 1968 Act, with amendments. The law now prohibits, among other things, using or carrying a firearm during and in relation to a federal “crime of violence.” 18 U. S. C. § 924(c)(1)(A). The law mandates substantial prison time for violators.

Over the last 33 years, tens of thousands of § 924(c) cases have been prosecuted in the federal courts. Meanwhile, violent crime with firearms has decreased significantly. Over the last 25 years, the annual rate of murders with firearms has dropped by about 50 percent, and the annual rate of non-fatal violent crimes (robberies, aggravated assaults, and sex crimes) with firearms has decreased by about 75 percent. Violent crime in general (committed with or without a firearm) has also declined. During that same time period, both the annual rate of overall violent crime and the annual rate of murders have dropped by almost 50 percent.

Although the level of violent crime in America is still very high, especially in certain cities, Americans under the age of 40 probably cannot fully appreciate how much safer most American cities and towns are now than they were in the 1960s, 1970s, and 1980s. Many factors have contributed to the decline of violent crime in America. But one cannot dismiss the effects of state and federal laws that impose steep punishments on those who commit violent crimes with firearms.

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Yet today, after 33 years and tens of thousands of federal prosecutions, the Court suddenly finds a key provision of § 924(c) to be unconstitutional because it is supposedly too vague. That is a surprising conclusion for the Court to reach about a federal law that has been applied so often for so long with so little problem. The Court's decision today will make it harder to prosecute violent gun crimes in the future. The Court's decision also will likely mean that thousands of inmates who committed violent gun crimes will be released far earlier than Congress specified when enacting § 924(c). The inmates who will be released early are not nonviolent offenders. They are not drug offenders. They are offenders who committed violent crimes with firearms, often brutally violent crimes.

A decision to strike down a 33-year-old, often-prosecuted federal criminal law because it is all of a sudden unconstitutionally vague is an extraordinary event in this Court. The Constitution's separation of powers authorizes this Court to declare Acts of Congress unconstitutional. That is an awesome power. We exercise that power of judicial review in justiciable cases to, among other things, ensure that Congress acts within constitutional limits and abides by the separation of powers. But when we overstep our role in the name of enforcing limits on Congress, we do not uphold the separation of powers, we transgress the separation of powers.

I fully understand how the Court has arrived at its conclusion given the Court's recent precedents in *Johnson v. United States*, 576 U. S. 591 (2015), and *Sessions v. Dimaya*, 584 U. S. 148 (2018). But this case presents an entirely different question. Those cases involved statutes that imposed additional penalties based on *prior* convictions. This case involves a statute that focuses on the defendant's current conduct during the charged crime. The statute here operates entirely in the present. Under our precedents, this statute therefore is not unconstitutionally vague. It is a serious mistake, in my respectful view, to follow *Johnson* and

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Dimaya off the constitutional cliff in this case. I respectfully dissent.¹

I

Section 924(c) prohibits using or carrying a firearm during and in relation to a federal “crime of violence,” or possessing a firearm in furtherance of a federal “crime of violence.”² Section 924(c) is a substantive criminal offense, not a sentence enhancement. The Government therefore charges a § 924(c) offense in the indictment. Ordinarily, when charged under § 924(c), a defendant will be charged with both an underlying federal crime and then also a § 924(c) offense. For example, Davis was charged with both conspiracy to commit robbery and a § 924(c) offense. Glover was likewise charged with both conspiracy to commit robbery and a § 924(c) offense.

¹The statistics contained in the introduction are drawn from: Dept. of Justice, Federal Bureau of Investigation, Uniform Crime Reports 6–7, 8–9 (1963) (rise in violent crime with firearms in the 1960s); *id.*, at 1, 6–7, 9 (1968) (same); Pew Research Center, Gun Homicide Rate Down 49% Since 1993 Peak; Public Unaware 6, n. 5, and 36, 50 (2013) (decrease in violent crime with firearms over about the past 25 years); N. James, Congressional Research Service, Recent Violent Crime Trends in the United States 25–26 (Rep. No. R45236) (June 20, 2018) (decrease in violent crime over about the past 25 years).

²Section 924(c)(1)(A) provides: “Except to the extent that a greater minimum sentence is otherwise provided by this subsection or by any other provision of law, any person who, during and in relation to any crime of violence or drug trafficking crime (including a crime of violence or drug trafficking crime that provides for an enhanced punishment if committed by the use of a deadly or dangerous weapon or device) for which the person may be prosecuted in a court of the United States, uses or carries a firearm, or who, in furtherance of any such crime, possesses a firearm, shall, in addition to the punishment provided for such crime of violence or drug trafficking crime—(i) be sentenced to a term of imprisonment of not less than 5 years; (ii) if the firearm is brandished, be sentenced to a term of imprisonment of not less than 7 years; and (iii) if the firearm is discharged, be sentenced to a term of imprisonment of not less than 10 years.” Section 924(c)(1)(B) imposes heightened penalties for certain types of firearms and firearm devices, and § 924(c)(1)(C) imposes heightened penalties for subsequent § 924(c) convictions.

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By any measure, Davis and Glover's conduct during the conspiracy was violent. Davis and Glover committed multiple armed robberies of convenience stores in the early morning hours. Those armed robberies followed a pattern: Davis and Glover (or Glover and a co-conspirator)—usually covering their faces—would arrive at a convenience store in the early morning hours in a car with no plates. One of them would point a short-barreled shotgun at a female employee and order her around. Sometimes, he would point the short-barreled shotgun in her face. Sometimes, he would put the short-barreled shotgun in her side. While one of them was aiming the short-barreled shotgun at the store employee, another would take cigarettes and demand money. Davis and Glover's crime spree ended with still more dangerous behavior: a high-speed car chase in wet and dangerous driving conditions that culminated in a crash.

Section 924(c)(3) lays out the definition of "crime of violence" for purposes of § 924(c). That definition has two prongs, either of which can bring a defendant within the scope of § 924(c).³

The first prong of § 924(c)(3) is the elements prong. That prong, the Government concedes here, asks whether the underlying crime *categorically* fits within § 924(c) because of the elements of the crime. The judge makes that determination. If the answer is yes, then the judge instructs the jury on the § 924(c) offense to simply find whether the defendant used or carried a firearm during and in relation to that underlying crime, or possessed a firearm in furtherance of that underlying crime.

The Fifth Circuit concluded that Davis and Glover's conspiracy offenses did not fit within the elements prong of

³Section 924(c)(3) provides: "For purposes of this subsection the term 'crime of violence' means an offense that is a felony and—(A) has as an element the use, attempted use, or threatened use of physical force against the person or property of another, or (B) that by its nature, involves a substantial risk that physical force against the person or property of another may be used in the course of committing the offense."

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§ 924(c)(3). So the question was whether Davis and Glover were covered by the second prong.

The second prong of § 924(c)(3) is the substantial-risk prong. That prong covers cases beyond those covered by the first prong, the elements prong. Congress sensibly wanted to cover defendants who committed crimes that are not necessarily violent by definition under the elements prong, but who committed crimes with firearms in a way that created a substantial risk that violent force would be used. To that end, the substantial-risk prong, properly read, focuses not on the elements of the underlying crime, but rather on the defendant's conduct during that crime. If a defendant used or carried a firearm during and in relation to the crime, *and* the defendant's conduct during the crime created a substantial risk that physical force may be used, then the defendant may be guilty of a § 924(c) offense. In that instance, the jury makes the finding: Did the defendant's conduct during the underlying crime create a substantial risk that violent force would be used?

In other words, as relevant here, a defendant can fall within the scope of § 924(c) either (1) because of the elements of the underlying crime or (2) because of the defendant's conduct in committing the underlying crime. Either (1) the judge finds that an element of the underlying crime entail the use of physical force or (2) the jury finds that the defendant's actual conduct involved a substantial risk that physical force may be used. Put another way, the underlying crime itself may automatically bring the defendant within the scope of § 924(c). Or if the underlying crime does not automatically qualify as a crime of violence, then the defendant's conduct during the crime may still bring the defendant within the scope of § 924(c). Sensible enough.

The basic question in this case is whether the substantial-risk prong of § 924(c)(3)'s definition of "crime of violence" is unconstitutionally vague. It is not.

As this Court has explained multiple times, criminal laws that apply a risk standard to a defendant's conduct are not

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too vague, but instead are perfectly constitutional. Writing for the Court in *Johnson*, for example, Justice Scalia stated that “we do not doubt the constitutionality of laws that call for the application of a qualitative standard such as ‘substantial risk’ to real-world conduct.” 576 U.S., at 603–604. The following year in *Welch v. United States*, Justice Kennedy confirmed that *Johnson* “cast no doubt on the many laws that ‘require gauging the riskiness of conduct in which an individual defendant engages *on a particular occasion*.’” 578 U.S. 120, 124 (2016) (quoting *Johnson*, 576 U.S., at 603). Two years later in *Dimaya*, JUSTICE KAGAN wrote for the Court and echoed Justice Scalia and Justice Kennedy: “In *Johnson*’s words, ‘we do not doubt’ the constitutionality of applying § 16(b)’s ‘substantial risk [standard] to real-world conduct.’” 584 U.S., at 161 (quoting *Johnson*, 576 U.S., at 603–604).

That kind of risk-based criminal statute is not only constitutional, it is very common. As the Court has recognized, “dozens of federal and state criminal laws use terms like ‘substantial risk,’ ‘grave risk,’ and ‘unreasonable risk,’” and almost all of those statutes “require gauging the riskiness of conduct in which an individual defendant engages *on a particular occasion*.” *Johnson*, 576 U.S., at 603. Indeed, the Government’s brief in *Johnson* collected more than 200 state and federal statutes that imposed criminal penalties for conduct that created a risk of injury to others. App. to Supp. Brief for United States in *Johnson v. United States*, O. T. 2014, No. 13–7120, pp. 1a–99a.

Take a few examples from federal law: It is a federal crime to create “a *substantial risk* of harm to human life” while illegally “manufacturing a controlled substance.” 21 U.S.C. § 858 (emphasis added). Under certain circumstances, it is a federal crime to create “a *substantial risk* of serious bodily injury to any other person by destroying or damaging any structure, conveyance, or other real or personal property within the United States or by attempting or conspiring to”

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do so. 18 U.S.C. §2332b(a)(1)(B) (emphasis added). And for purposes of the chapter of the federal criminal code dealing with sexual abuse crimes, “serious bodily injury” is defined as “bodily injury that involves a *substantial risk* of death, unconsciousness, extreme physical pain, protracted and obvious disfigurement, or protracted loss or impairment of the function of a bodily member, organ, or mental faculty.” §2246(4) (emphasis added).

The States’ criminal codes are similar. Among the crimes that the States define by using qualitative risk standards are resisting arrest,⁴ kidnaping,⁵ assault,⁶ battery,⁷ criminal recklessness,⁸ endangerment,⁹ unlawful re-

⁴See, e.g., Colo. Rev. Stat. §18–8–103(1)(b) (2018) (“substantial risk of causing bodily injury”); Ind. Code §35–44.1–3–1(b)(1)(B) (2019) (“substantial risk of bodily injury”); Mo. Rev. Stat. §575.150 (2016) (“substantial risk of serious physical injury or death”); Neb. Rev. Stat. §28–904(1)(b) (2016) (“substantial risk of causing physical injury”); Ore. Rev. Stat. §162.315(2)(c) (2017) (“substantial risk of physical injury”).

⁵See, e.g., Alaska Stat. §11.41.300(a)(2)(B) (2018) (“substantial risk of serious physical injury”); Ohio Rev. Code Ann. §2905.01(B) (Lexis Supp. 2019) (“substantial risk of serious physical harm”).

⁶See, e.g., Ala. Code §13A–6–20(a)(3) (2015) (“grave risk of death”); Del. Code Ann., Tit. 11, §613(a)(3) (2015) (“substantial risk of death”); D.C. Code §22–404.01(a)(2) (2018 Cum. Supp.) (“grave risk of serious bodily injury”); Mo. Rev. Stat. §565.056(1)(4) (2016) (“substantial risk of death or serious physical injury”); Utah Code §76–5–102(1)(b) (2017) (“substantial risk of bodily injury”).

⁷See, e.g., Ind. Code §35–42–2–1.5 (Supp. 2018) (“substantial risk of death”); Wis. Stat. §940.19(6) (2016) (“substantial risk of great bodily harm”).

⁸See, e.g., Me. Rev. Stat. Ann., Tit. 17–A, §211(1) (2006) (“substantial risk of serious bodily injury”), §213(1) (same); Okla. Stat., Tit. 21, §1289.11 (2011) (“unreasonable risk and probability of death or great bodily harm”); Wis. Stat. Ann. §939.24(1) (2016) (“unreasonable and substantial risk of death or great bodily harm”).

⁹See, e.g., Ariz. Rev. Stat. Ann. §§13–1201(A), (B) (2010) (“substantial risk of imminent death or physical injury” and “substantial risk of imminent death”); N. D. Cent. Code Ann. §12.1–17–03 (2012) (“substantial risk of serious bodily injury or death”); Ore. Rev. Stat. §163.195(1) (2017) (“sub-

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straint,¹⁰ theft,¹¹ hazing,¹² abuse,¹³ neglect,¹⁴ arson,¹⁵ homicide,¹⁶ and weapons offenses.¹⁷

stantial risk of serious physical injury”); Wash. Rev. Code § 9A.36.050(1) (2018) (“substantial risk of death or serious physical injury”).

¹⁰ See, *e. g.*, Ark. Code § 5–11–103(a) (2013) (“substantial risk of serious physical injury”); Conn. Gen. Stat. § 53a–95(a) (2017) (“substantial risk of physical injury”); Tex. Penal Code Ann. § 20.02(c)(2)(A) (2019) (“substantial risk of serious bodily injury”).

¹¹ See, *e. g.*, Ind. Code § 35–43–4–2(a)(2)(B) (2018) (“substantial risk of bodily injury”); Minn. Stat. § 609.52(3a) (2016) (“reasonably foreseeable risk of bodily harm”).

¹² See, *e. g.*, Ind. Code § 35–42–2–2.5(a) (2018) (“substantial risk of bodily injury”); Miss. Code Ann. §§ 97–3–105(1), (3) (2014) (“substantial risk of physical injury”); Mo. Rev. Stat. §§ 578.365(1), (5) (2016) (“probable risk of the loss of life or probable bodily or psychological harm” and “substantial risk to the life of the student or prospective member”); Ohio Rev. Code Ann. § 2903.31(A) (Lexis 2014) (“substantial risk of causing mental or physical harm”); Ore. Rev. Stat. §§ 163.197(4)(a)(B), (C) (2017) (“unreasonable risk of harm”).

¹³ See, *e. g.*, Iowa Code § 709.3(1)(a) (2019) (“substantial risk of death or serious injury”); N. C. Gen. Stat. Ann. § 14–318.2(a) (2017) (“substantial risk of physical injury”); W. Va. Code Ann. §§ 61–8D–3(c), (d)(1) (2014) (“substantial risk of death or serious bodily injury” and “substantial risk of bodily injury”); Wis. Stat. §§ 948.03(1), (4)(a), (b) (2016) (“unreasonable risk of harm,” “unreasonable risk of great bodily harm,” and “unreasonable risk of bodily harm”).

¹⁴ See, *e. g.*, Fla. Stat. § 825.102(3)(a) (2018) (“substantial risk of death”), § 827.03(1)(e) (same); W. Va. Code Ann. §§ 61–8D–4(c), (d)(1) (2014) (“substantial risk of death or serious bodily injury” and “substantial risk of bodily injury”).

¹⁵ See, *e. g.*, Kan. Stat. Ann. §§ 21–5812(c)(2)(A)(i), (ii) (2018 Cum. Supp.) (“substantial risk of bodily harm”); R. I. Gen. Laws § 11–4–2 (2002) (“substantial risk of serious physical harm”); Wis. Stat. §§ 941.11(1), (2) (2016) (“unreasonable risk of death or great bodily harm”).

¹⁶ See, *e. g.*, Ala. Code § 13A–6–2(a)(2) (2015) (“grave risk of death”); Kan. Stat. Ann. § 21–5406(a) (2018 Cum. Supp.) (“unreasonable risk of injury”); N. Y. Penal Law Ann. § 125.20(4) (West 2009) (“grave risk of serious physical injury”), §§ 125.25(2), (4) (“grave risk of death” and “grave risk of serious physical injury or death”).

¹⁷ See, *e. g.*, Alaska Stat. § 11.61.190(a)(2) (2018) (“substantial and unjustifiable risk of physical injury”); Ark. Code Ann. § 5–74–107(b)(1) (Supp. 2017) (“substantial risk of physical injury”); Ohio Rev. Code